

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 20, 2026 TIME: 8:30 A.M.

No. 25CV03406

BANK OF AMERICA, N.A. v. IRODISTAN

**PLAINTIFF'S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR
ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED**

The motion is granted.

This is a collections case based upon unpaid credit card debt. Plaintiff seeks \$5,385.98. Defendant filed an answer and then an amended answer.

On January 7, 2026, plaintiff served requests for admission set one, on defendant, attached to the declaration of Brian Langedyk, as Exhibit 1. Plaintiff states defendant has failed to respond to the requests. (Decl. of Langedyk at ¶ 3.) The requests were served on defendant at 36 Holm Road, Watsonville, CA, which is the same address defendant used when filing his answers.

Defendant did not file an opposition to this motion.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Mr. Langedyk as Exhibit 1, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.

No. 25CV02436

BANK OF AMERICA, N.A. v. FARLEY

**PLAINTIFF'S MOTION FOR ORDER THAT MATTERS IN REQUESTS FOR
ADMISSIONS OF TRUTH OF FACTS BE DEEMED ADMITTED**

The motion is granted.

LAW AND MOTION TENTATIVE RULINGS

DATE: JULY 20, 2026 TIME: 8:30 A.M.

This is a collections case based upon unpaid credit card debt. Plaintiff seeks \$18,530.54.

On December 12, 2025, plaintiff served requests for admission set one, on defendant, attached to the declaration of Smita Suman as Exhibit 1. Plaintiff states defendant has failed to respond to the requests. (Decl. of Suman at ¶ 3.) The requests were served on defendant at 5888 Fern Flat Rd., Aptos, CA, which is the same address defendant used when filing her answer.

Defendant filed an opposition on June 30, 2026, arguing that she does not have an obligation or legal duty to respond to the requests because plaintiff has not provided a valid contract. Defendant does not provide a reason for her failure to respond to the requests. In addition, there is no proof that defendant served her opposition on plaintiff.

“If a party to whom requests for admission have been directed fails to serve a timely response, the requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction pursuant to Section 2023.030 of the Code of Civil Procedure.” (Code Civ. Proc., § 2033.280, subd. (b).) Monetary sanctions are mandatory if requested. (Code Civ. Proc., § 2033.280, subd. (c).)

Therefore, the matters specified in requests for admission, set one, attached to the Declaration of Suman as Exhibit 1, are deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) This will be the order of the Court unless defendant serves, before the hearing on the motion, a proposed response to the requests for admissions that is in substantial compliance with Code of Civil Procedure section 2033.220. Plaintiff did not request sanctions.